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IG-LEGAL-TOS	v1.2	January 2026	April 2026

Terms of Service

1. Acceptance of Terms

By accessing and using ISOGuardian ("the Service"), you accept and agree to be bound by these Terms of Service, our Privacy Policy and PAIA Manual (collectively, "the Terms"). If you do not agree, do not use the Service. If acting for a company, you warrant authority to bind it.

These Terms are governed by the laws of the Republic of South Africa, including the Consumer Protection Act 68 of 2008 (CPA), the Protection of Personal Information Act 4 of 2013 (POPIA), and the Electronic Communications and Transactions Act 25 of 2002 (ECTA).

2. Service Description

ISOGuardian is a cloud-based ISO compliance management platform that provides:

- ISO compliance management across ISO 9001:2015, ISO 14001:2015, and ISO 45001:2018
- Document management — upload, store, organise, and retrieve ISO documentation with automated numbering and Activity Trail logging
- Non-Conformance Report (NCR) tracking — full lifecycle management from creation through corrective action to closure
- Audit scheduling and management — internal and external audit scheduling with close-out documentation per ISO 19011:2018
- Management review scheduling and documentation per ISO 9001:9.3, including meeting minutes, decisions, and action items
- Compliance scoring and reporting across all supported standards, organised by clause
- Activity Trail — comprehensive audit logging for ISO 7.5.3 traceability
- Branded PDF document exports with company branding and signature blocks

3. Platform Development & Future Features

ISOGuardian is an actively developed platform. We continuously enhance the Service by adding new features, improving existing functionality, and expanding standards coverage.

No Commitment: References to planned or future features do not constitute a commitment that such features will be delivered by any specific date.

Feature Changes: We reserve the right to modify, enhance, or retire features with thirty (30) days' notice. Core functionality will not be removed during your subscription term without equivalent replacement.

4. User Responsibilities

You agree to:

- Provide accurate information and maintain its accuracy
- Keep credentials confidential and notify us of any suspected unauthorised access
- Use the Service in compliance with all applicable South African laws
- Ensure personal information uploaded has a lawful basis under POPIA
- Not reverse-engineer, decompile, or derive source code of the Platform
- Not upload malicious content or material infringing third-party IP rights
- Maintain your own backups of critical data

5. Data Ownership & License

Your Data: You retain all rights to data you upload to ISOGuardian.

License Grant: You grant us a limited licence to store, process, and display your data solely for providing the Service.

Our IP: The Platform, including software, design, templates, branded export formats, and documentation, is owned by ISOGuardian (Pty) Ltd. You are granted a non-exclusive, non-transferable licence for the duration of your subscription.

6. Limitation of Liability

IMPORTANT

ISOGuardian is a management tool designed to assist with compliance management. It does not guarantee ISO certification, 100% compliance with any standard, elimination of all compliance risks, or that any feature will produce a particular regulatory outcome. You remain solely responsible for achieving and maintaining compliance.

Exclusion: To the maximum extent permitted by law, we are not liable for indirect, incidental, special, or consequential damages, including loss of profits, data, or goodwill.

Maximum Liability: Our total aggregate liability shall not exceed fees paid by you in the 12 months preceding the claim.

7. Service Availability

Uptime Target: We target 99% monthly uptime. This excludes scheduled maintenance, force majeure, and third-party outages.

Maintenance: Communicated at least 48 hours in advance where practicable.

Support: Email support during business hours (Monday–Friday, 08:00–17:00 SAST, excl. SA public holidays).

8. Payment & Subscription

Billing: Subscription-based. All amounts in ZAR, exclusive of VAT.

Payment: Due in advance on the 1st of each month via EFT. Late payment beyond 7 days may restrict access; beyond 14 days, suspension.

Price Changes: Once per annum with 30 days' notice. Increases capped at 10% or CPI + 2%, whichever is greater.

9. Cancellation & Refunds

CPA Cooling-Off: Where the CPA applies, cancel within 5 business days of signup for a full refund less prorated usage.

Month-to-Month: Cancel with 30 days' written notice. Effective at end of billing cycle.

Fixed-Term: Early cancellation subject to a reasonable termination fee calculated per CPA Section 14.

10. Account Termination

By You: Contact support to terminate your account.

By Us: We may suspend or terminate for breach, non-payment exceeding 30 days, fraud, or abuse. 14 days' notice and opportunity to remedy provided.

Data Retention: Data retained for 30 days post-termination for export, then permanently deleted.

11. Data Protection & POPIA

We process personal information under POPIA. You are the Responsible Party; ISOGuardian is the Operator.

Data Hosting: Supabase infrastructure in the EU (London), compliant under POPIA Section 72.

Security: AES-256 encryption at rest, TLS in transit, Row Level Security, role-based access, audit logging.

Breach Notification: Within 72 hours per POPIA Section 22.

12. Security

- AES-256 encryption at rest and TLS 1.2+ in transit
- Row Level Security (RLS) for multi-tenant data isolation
- Role-based access controls with company-scoped permissions
- Comprehensive audit logging of all actions
- Cloudflare Turnstile CAPTCHA protection
- Session management with automatic timeout

13. Changes to Terms

We may update these Terms with 30 days' written notice per CPA Section 14(2)(b)(i)(bb). Material changes communicated via email. Continued use constitutes acceptance.

14. Force Majeure

Not liable for failure or delay caused by events beyond reasonable control: acts of God, disasters, power outages, internet failures, government actions, pandemics, or third-party provider outages.

15. Governing Law

South African law applies. Disputes first to mediation in Gauteng; if unresolved within 30 days, to the courts of South Africa, Gauteng Division.

16. Miscellaneous

These Terms, together with your Client Subscription Agreement (if applicable), Privacy Policy, and PAIA Manual, constitute the entire agreement. Invalid provisions do not affect the remainder. Electronic signatures recognised per ECTA.

Contact Information

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ISOGuardian (Pty) Ltd | Registration: 2026/082362/07 | VAT: Pending